

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687764499378

अनुबंध तिथि | Generated Date : 22-Nov-2024

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2024/B/5285282](#)

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्ररूप Type : Central Autonomous मंत्रालय Ministry : PMO विभाग Department : Department of Atomic Energy संगठन का नाम Organisation Name : Institute for Plasma Research कार्यालय क्षेत्र Office Zone: West Zone	पद Designation : Alpesh Kumar Patel संपर्क नंबर Contact No. : 079-23962000-2026 ईमेल आईडी Email ID : buyer4.ipr.gj@gembuyer.in जीएसटीआईएन GSTIN : 24AAAII0348C2ZC पता Address : BHAT, NEAR INDIRA BRIDGE, GANDHINAGAR, GANDHINAGAR, GUJARAT-382428, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : No प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: Division Head वित्तीय अनुमोदन का पदनाम Designation of Financial Approval: Head-Purchase Section	Role: PAO भुगतान का तरीका Payment Mode: Offline पद Designation : Accounts Officer - I ईमेल आईडी Email ID : pao1.ipr.gadj@gembuyer.in जीएसटीआईएन GSTIN : N पता Address: BHAT, NEAR INDIRA BRIDGE, GANDHINAGAR, GANDHINAGAR, GUJARAT-382428, India

विक्रेता विवरण Seller Details
जेम विक्रेता आईडी GeM Seller ID : 21BA180000412759 कंपनी का नाम Company Name : MAYA BATTERY & ELECTRICAL WORKS संपर्क नंबर Contact No. : 09830022466 ईमेल आईडी Email ID : info@mayabattery.com पता Address : 3,JADULAL MULLICK ROAD,KOLKATA, KOLKATA, WEST BENGAL-700006, - एमएसएमई पंजीकरण संख्या MSME Registration number : - जीएसटीआईएन GSTIN: 19ADTPB8580G1Z1 (R) खरीदार द्वारा मूल्यांकित एमआईआई स्थिति MII Status as evaluated by buyer : Not Verified खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer : Not Verified

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

वितरण निर्देश | Delivery Instructions : NA

उत्पाद विवरण Product Details						
#	आइटम विवरण Item Description	आइटम विवरण Ordered Quantity	इकाई Unit	इकाई मूल्य (INR) Unit Price (INR)	कर विभाजन (INR) Tax Bifurcation (INR)	मूल्य (INR में सभी शुल्क और कर सहित) Price (Inclusive of all Duties and Taxes in INR)
1	उत्पाद का नाम Product Name : EXIDE Acrylonitrile butadiene styrene (ABS) Stationary Valve Regulated Lead Acid Batteries of 12 Volt ब्रांड Brand : EXIDE ब्रांड प्रकार Brand Type : Registered Brand कैटलॉग की स्थिति Catalogue Status: Catalogue not verified by OEM कैसे बेचा जा रहा है Selling As : OEM verified Reseller श्रेणी का नाम और चतुर्थांश Category Name & Quadrant : Stationary Valve Regulated Lead Acid Batteries As Per IS 15549 (Q3) मॉडल Model: BATTERY 12 VOLT 84 AH एचएसएन कोड HSN Code: HSN not specified by seller	64	pieces	5,600	NA	358,400
कुल ऑर्डर मूल्य Total Order Value (in INR)						358,400

बायबैक आइटम विवरण | Buyback Item Details <

#	आइटम विवरण Item Description	मात्रा Quantity	इकाई Unit	इकाई मूल्य Unit Price (INR)	कुल बायबैक मूल्य Total Buyback Price(INR)
	वस्तु का नाम Item Name : AMARON QUANTA SMF-VRLA विवरण Description : 12VOLT 84Ah SMF BATTERIES ब्रांड Brand: AMARON				

1	नमूना Model : QUANTA(12AL084) निर्माण का वर्ष Year of Manufacturing : 2019 कब खरीदा गया Purchased On : 2019-05-28 आयु Age : null	64	Nos.	118	7,552
परेषिती विवरण Consignee Detail					
क्र.सं. S.No	परेषिती Consignee	वस्तु Item	लॉट नंबर Lot No.	मात्रा Quantity	दिनांक के बाद डिलीवरी शुरू करना है Delivery Start After वितरण पूरा कब तक करना है Delivery To Be Completed By
1	पद Designation : - ईमेल आईडी Email ID : con6.ipr.gj@gembuyer.in संपर्क Contact : 079-23962000-2264 जीएसटीआईएन GSTIN : 24AAAAI0348C2ZC पता Address : BHAT, NEAR INDIRA BRIDGE, GANDHINAGAR, GANDHINAGAR, GUJARAT-382428, India	EXIDE Acrylonitrile butadiene styrene (ABS) Stationary Valve Regulated Lead Acid Batteries of 12 Volt	-	64	22-Nov-2024 06-Jan-2025
Product Specification for EXIDE Acrylonitrile butadiene styrene (ABS) Stationary Valve Regulated Lead Acid Batteries of 12 Volt					
विनिर्देश Specification	उप-विनिर्देश Sub-Spec	मूल्य Value			
GENERIC	Stationary Valve Regulated lead acid batteries conforming to IS: 15549/2005 with Amendment 1 and 2 latest	Yes			
	ISI Marked	Yes			
	ISI Marked if "YES" declare BIS License Number (CM/L Number). If "NO" write NA	NA			
	Battery Voltage	12 Volt			
	Battery Capacity (in Ah) at 10 H Rate	84 Ah			
	Material of Container	Acrylonitrile butadiene styrene (ABS)			
	Material of separators as per Cl. 4.5 of IS:15549:2005 latest	Glass Mat			
	Battery supply condition condition	Factory Charged Condition			
CONSTRUCTIONAL	Material and construction for Containers, Cell Lids, Plates, Electrolyte, Terminal posts, Fasteners, Connectors and Separators as per Cl. 4 of IS:15549:2005 latest	Yes			
	Marking as per Cl. 8 of IS:15549: 2005 latest	Yes			
	Application of battery	Float			
	Number of cells per battery	6 Cells for 12 Volt Battery			
	Method of connections between cells	Bolted			
	Over all dimension of each battery (Length x Width x Height) in mm - Must declare	407X173X235			
	Weight of each battery (in Kg) - Must declare	30			
	Instructions/Manuals shall be furnished for procedure and monitoring the health of battery during maintenance and preventive measures required	Yes			
	Warranty (in Years)	3 Years			
CERTIFICATIONS	Availability of complete and satisfactory type test Report from Central Government / NABL/ ILAC accredited laboratory to showing conformity of the Specification	Yes			
	Test report Number	013EATDBT17S0073			
	Report date	10-01-18			
	Name of Lab	CPRI			
	Address of Lab	BANGALORE			
	All the test reports and certificates shall furnish to the buyer/consignee on demand	Yes			
ईपीबीजी विवरण ePBG Detail					
सलाहकार बैंक Advisory Bank :				State Bank of India	
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):				5.00	
बोली लगाने वाले को बोली के नियमों और शर्तों के अनुसार लागू ईपीबीजी प्रस्तुत करना होगा The bidder shall furnish ePBG as applicable as per bid's terms and conditions					
नियम और शर्तें Terms and Conditions					

1. Special terms and conditions- Version:1 effective from 04-05-2020

1.1 Battery serial number list shall be furnish by the seller along with the supply of the battery to Buyer

2. General Terms and Conditions-

2.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.

2.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable

3. Buyer Added Bid Specific Terms and Conditions-

3.1 Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

3.2 Scope of Supply.

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

3.3 Generic

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

3.4 Generic

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- The Seller fails to comply with any material term of the Contract.
- The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- The Seller becomes bankrupt or goes into liquidation.
- The Seller makes a general assignment for the benefit of creditors.
- A receiver is appointed for any substantial property owned by the Seller.
- The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

3.5 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3.6 Warranty:

Warranty period of the supplied products shall be 3 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

3.7 Forms of EMD and PBG:

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of

Director, Institute for Plasma Research
payable at
Gandhinagar

. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

3.8 Forms of EMD and PBG:

Successful Bidder can submit the Performance Security in the form of Fixed Deposit Receipt also (besides PBG which is allowed as per GeM GTC). FDR should be made out or pledged in the name of

Director, Institute for Plasma Research

A/C (Name of the Seller). The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of Security Deposit, the FDR will be released in favour of bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Successful Bidder has to upload scanned copy of the FDR document in place of PBG and has to ensure delivery of hard copy of Original FDR to the Buyer within 15 days of award of contract.

3.9 Buyback for Non PFMS / Non GPA :

Buyback for Non PFMS/Non GPA:

- GST will apply on the value of buyback and separate invoice is to be prepared by Government buyer/Consignee for buyback items offline outside the GeM system. Vendor should work out input credit for that GST applicable on the buy back while quoting the product/services.
- Input GST Credit consideration by seller- seller shall offer the prices in the bid by the total amount of new goods including GST- total amount of old goods quoted by the firm excluding GST. This is because GST charged by buyer on buy-back value will be available for full ITC (input tax credit) on the hands of bidder. Therefore, for the purpose of quoting in the bid and evaluation, value as quoted by the bidder (excluding any GST on buy back) as indicated in column G below will be considered.

Illustrative examples for bidders are as under for understanding of the seller.

Excel sheet for explanation to Buyback ATC							
S.no	Cost of Fresh Good (A)	%age of GST on Fresh Good as considered by seller at the time of quote (B).	GST Amount on Fresh Good (C)	Cost of Buyback item (D)	%age of GST on Buyback items (E) as fixed by buyer in the bid	GST Amount on Buyback item (F) as applicable at the time of invoice by buyer	Quote of the Bidder (G={A+C-D})
1	100	28	28	20	8	1.6	108
2	100	9	9	20	8	1.6	89
3	110	10	11	24	8	1.92	97
Seller after the award of the GeM contract, will indicate all column A to G which will not alter their quoted price indicated in Colum-G							

3. Successful lowest bidder has to provide detailed cost break up of tendered items as well as buy back items separately after award of contract through email to the government

buyer/consignee.

4. The seller of new item /service provider shall deposit the cost of invoiced buy back item with GST to the buyer for allowing seller to lift up the material from the buyer/consignee premise.

5. Transportation of buy back items from buyer premises shall be arranged by the seller itself without any extra cost.

6. Government Buyer organisation /consignee will issue invoice of buy back items to the seller at the cost of buyback to be indicated to the buyer by the seller offline after receipt of order. This in no case will modify the bid in any manner.

7. The seller will be entirely responsible for the safe disposal of old items without affecting the environment in any manner as per prevailing statutory rules and Act/ law of the land.

8. The seller may visit the site and inspect the condition of buy back item in advance before quoting for the bid.

9. Receipt of payment by the buyer for Old items and invoicing by buyer will be out of GeM portal.

10. Government Buyer will upload the details of old goods along with the bid in the corrigendum with minimum price.

11. If the minimum price (Optional) is indicated and sellers of new item who are not agreeing to take back the old item at equal to or above that minimum price should not participate in the bid.

12. In case they participate into the bid and afterwards indicates the price of old goods, less than the minimum price shown by Government Buyer in corrigendum, EMD of the bidder will be forfeited.

13. Item Details Consignee wise will be indicated in the corrigendum like -

1. Consignee wise

2. Item Description

3. Serial Number

4. Model

5. Brand

6. Year of manufacturing

7. Purchased on

8. Age

9. Size, Rating, Designation

10. Quantity

11. Min price (Optional)

12. Unit

13. Working Guidelines (/Functional/Non-Functional)

14. Remarks

14. The successful bidder shall remove the old goods from the premise of the Government buyer/consignee at the time of the supply, installation and commissioning of fresh goods. Seller will be entitled for payment only after removal of old goods from Government buyer/consignee/user's premise and after supplying the fresh goods in terms of contract.

15. Note: This clause of ATC shall be operated by non PFMS; non GPA buyer i.e. all PSU working through their ERP and not integrated with GPA.

3.10 *Buyer Added Bid Specific ATC:*

Buyer Added text based ATC clauses

1. Scope of Work :

1.1 Present battery bank is connected with the following UPS:

a. UPS : TECHSER, Capacity: 40 KVA

b. Total 64 batteries are connected which needs to be replaced.

c. Present batteries are of Make: QUANTA and are of 12V/84AH capacity. The Present batteries are operational from 31st July 2019.

1.2 Detailed Scope of Work for battery bank replacement with buyback:

a. The vendor shall supply the SMF batteries with 12V/84AH capacity.

b. Downtime for the Data Center will be finalized after confirmation from the vendor is received before installation initiation.

c. Vendor has to replace the battery bank in a single day to avoid multiple downtimes.

d. Vendor has to take a note that UPS Room is at the first floor and there is no lift facility. Accordingly the replacement work has to be scheduled.

e. During installation IPR Data Center O&M staff will call UPS (Techser) engineer for the monitoring / configuration during the battery replacement. Vendor has to co-ordinate during installation.

2. Inspection:

Nominated Inspection Agency: On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance:

Pre-dispatch Inspection at Seller Premises: N.A.

Post Receipt Inspection at consignee site before acceptance of stores: Un installed the old batteries and Installed the new batteries as mention in buyer specification Documents by vendor at IPR premises in presence of IPR representative.

3. Bidder should confirm the local content for the quoted product as perAnnexure-I of the bid, failing which Bid will be rejected. Any change in the prescribed format, offer shall summarily rejected.

4. Submission of offer shall be deemed acceptance of all terms and conditions mentioned in the bid documents including delivery period, payment , ePBG, etc. Any deviation found in uploaded documents shall not be considered. The GeM GTC, STC and also all the clauses incorporated by the Bu yer in ATC and various corrigendum of the bid will be final.

5. Bidder should upload duly filled compliance statement with actual values (do not mention yes/of/acceptable/compliance etc. wherever possible)

6. RECTIFICATION AND REPLACEMENT OF DEFECTIVE STORES:

In case repair/replacement of defective/rejected stores during warranty period is necessary and becomes essential to return the stores, to the contractor, where full or part payment has already been made by the purchaser, the contractor shall submit bank guarantee for the value of stores so found defective/rejected as per Annexure-III valid till receipt and acceptance of repaired/replaced/entire stores within fifteen days of intimation to collect the stores. However, the contractor will not be absolved from his responsibility as specified in the bid document.

3.11 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#).

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है। इस दस्तावेज़ का प्रिंट आउट भुगतान/लेनदेन उद्देश्य के लिए मान्य नहीं है।

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.